

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

YANG MING TRANSPORT CO., *Respondent*.

DOCKET NO. 22-21

Served: June 23, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON MOTION TO ENLARGE TIME TO FILE REPLY

On June 21, 2023, Complainant filed a Motion for Enlargement of Time to File Reply Brief, seeking an additional 21-days to file its Reply Brief. Complainant seeks the additional time because the Opposition Brief is long and cites 50 cases, and Complainant does not have access to the Pike & Fischer's Shipping Regulation Reports ("S.R.R."), which publish Federal Maritime Commission ("FMC") cases, and must travel to Washington, D.C. to use the FMC library.

On June 22, 2023, Respondent filed an opposition to Complainant's motion, asserting that counsel "confirmed that all but four of the opinions in Respondent's Opposition Brief are available on Lexis...or on the FMC website (FMC Reports)."¹ Respondent attached those four opinions to its Opposition Brief.

Complainant's argument regarding the length of Respondent's Opposition Brief does not support a finding of good cause. Respondent's brief is within the 80-page limit set by Commission Rule ¶ 502.214(e). Similarly, the number of cases cited by Respondent in its brief does not warrant a finding of good cause to extend the time for filing a reply. Respondent filed its Opposition Brief and served a copy of it on Complainant on June 14, 2023, a week before Complainant filed the instant motion. Now, several more days have passed, giving Complainant ample time to read Respondent's brief and conduct research.

While it is unclear if the four cases attached to Respondent's opposition to Complainant's motion resolves the final argument made by Complainant that it does not have access to the cases published in the SRR, Complainant is referred to the following resources for further assistance in locating FMC cases. As noted in the Initial Order issued on August 22, 2022, under Additional Instructions at page 2:

¹ Much of Respondent's opposition ascribes an ulterior motive to Complainant's motion; the undersigned notes that such vitriol does not serve to advance its arguments.

Information regarding where to find the Commission's rules of practice and procedure (46 C.F.R. § 502), Commission decisions, and other information helpful for parties may be found in the reading room section of the Commission's website, <https://www2.fmc.gov/readingroom>.

Additionally, Westlaw (which the Commission started using May 1, 2023), and Lexis have FMC-specific databases and some cases also published in the SRR can be found in these databases (and according to Respondent, all of the SRR cases cited by it with the exception of the four it provided). For example, both ALJ and Commission decisions can be found in Westlaw under "Administrative Decisions & Guidance," then select Topic/"Admiralty and Maritime," then "Federal Maritime Commission."

Respondent opposes the motion to enlarge the time for Complainant to file its Reply Brief, but it states that if the motion is granted, it should not be for longer than seven days. It is reasonable that with the copies of cases provided by Respondent and the additional resources explained above, Complainant should be able to access the necessary caselaw with a short extension of time to file its reply brief.

Good cause having been demonstrated for a short extension of time in which to file its Reply Brief, it is hereby **ORDERED** that Complainant's motion be **GRANTED IN PART AND DENIED IN PART**. Complainant shall file its Reply Brief no later than July 3, 2023.



Linda S. Harris Crovella
Administrative Law Judge